



U.S. Customs and Border Protection

PUBLIC VERSION

EAPA Case 8206

November 13, 2025

Wysdom USA Co., Ltd.
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Deer Park Glycine LLC
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Re: Notice of Initiation of Investigation and Interim Measures - EAPA Case 8206

Dear Counsel and/or Representatives for the Above-Referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection (CBP) has commenced a formal investigation under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act (EAPA). Specifically, CBP is investigating whether Wysdom USA Co., Ltd. (Wysdom or the Importer) evaded antidumping duty (AD) order A-570-836 and countervailing duty (CVD) order C-570-081 (collectively, the *Orders*) on glycine¹ by entering into the United States Chinese-origin glycine that was transshipped through Indonesia to avoid paying duties as per the *Orders*.² Based on a review of available information, CBP has determined that there is reasonable suspicion of evasion of AD/CVD duties by Wysdom for Chinese-origin glycine; therefore, CBP has imposed the interim measures outlined below.

Period of Investigation

Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are “those entries of allegedly covered merchandise made within one year before the receipt of an allegation” Entry is defined as an “entry, or withdrawal from warehouse for consumption, of merchandise into the customs territory of the United States.”³ CBP acknowledged receipt of the EAPA

¹ See *Glycine from the People’s Republic of China*, 60 FR 16116 (March 29, 1995). See also *Glycine from India and the People’s Republic of China*, 84 FR 29173 (June 21, 2019) (collectively, the *Orders*).

² See CBP Memorandum, “Initiation of Investigation for EAPA Case Number 8206,” dated August 28, 2025 (Initiation Memorandum).

³ See 19 U.S.C. § 1517(a)(4); see also 19 C.F.R. § 165.1.

allegation against Wysdom on August 7, 2025.⁴ Therefore, the entries covered by this investigation are those entered for consumption, or withdrawn from warehouse for consumption, from August 7, 2024, through the pendency of this investigation.⁵

Scope of the Orders

The scope of the CVD Order is as follows:⁶

The merchandise covered by these orders is glycine at any purity level or grade. This includes glycine of all purity levels, which covers all forms of crude or technical glycine including, but not limited to, sodium glycinate, glycine slurry and any other forms of amino acetic acid or glycine. Subject merchandise also includes glycine and precursors of dried crystalline glycine that are processed in a third country, including, but not limited to, refining or any other processing that would not otherwise remove the merchandise from the scope of these orders if performed in the country of manufacture of the in-scope glycine or precursors of dried crystalline glycine. Glycine has the Chemical Abstracts Service (CAS) registry number of 56-40-6. Glycine and glycine slurry are classified under Harmonized Tariff Schedule of the United States (HTSUS) subheading 2922.49.43.00. Sodium glycinate is classified in the HTSUS under 2922.49.80.00. While the HTSUS subheadings and CAS registry number are provided for convenience and customs purposes, the written description of the scope of these orders is dispositive.

Similarly, the AD Order provides “{t}his order covers glycine of all purity levels.”⁷

Initiation

On August 28, 2025, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP’s Office of Trade, initiated an investigation under EAPA as a result of the Allegation⁸ submitted by Deer Park Glycine, LLC (DPG or the Allegor)⁹ regarding the evasion of AD/CVD duties by Wysdom.¹⁰ DPG alleged that Wysdom entered Chinese-origin glycine into the United States that was transshipped through Indonesia, and falsely entered the glycine as Indonesian-origin merchandise, to evade the *Orders*.¹¹

⁴ See email “EAPA 8206 - Receipt of Properly Filed Allegation” dated August 7, 2025, receiving case 8206.

⁵ See 19 C.F.R. § 165.2.

⁶ See *Glycine from India and the People’s Republic of China*, 84 FR 29173 (June 21, 2019).

⁷ See *Glycine from the People’s Republic of China*, 60 FR 16116 (March 29, 1995).

⁸ See the DPG’s Letter, “Evasion Allegation Against Wysdom USA Co. Ltd. Under the Enforce and Protect Act” dated July 18, 2025 (Allegation).

⁹ DPG is a U.S. producer of covered merchandise. Therefore, DPG qualifies as an interested party that may file an EAPA allegation pursuant to 19 C.F.R. § 165.1 and § 165.11(a); See also Allegation at 1.

¹⁰ See Initiation Memorandum.

¹¹ *Id.*

Description of the Alleged Transshipment Scheme

DPG alleges that Wysdom is importing Chinese-origin glycine that has been transshipped through Indonesia by PT Newtrend Nutrition Ingredient (Newtrend Indonesia)¹² and declaring the glycine as Indonesian-origin, not subject to AD and CVD duties.¹³ To support this contention, the Alleger supplied United States import data for a Harmonized Tariff Schedule (HTS) code subheading covering glycine.¹⁴ The data reveals Newtrend Indonesia shipped 3,180,000 kilograms (kgs.) of glycine in 2024 and 960,100 kgs. of glycine in 2025 (at the time of filing of the allegation) to the United States with Wysdom serving as the importer of record and/or consignee for all these shipments.¹⁵

The Allegation points out that Wysdom was established in Delaware in April 2023,¹⁶ approximately nine months after CBP’s prior final affirmative determination as to evasion involving Newtrend Indonesia.¹⁷ According to the Allegation, CBP’s previous determination as to evasion in EAPA 7647 suggests that any glycine imported from Newtrend Indonesia is likely transshipped Chinese-origin glycine.¹⁸ DPG also points out that CBP’s evasion decision was affirmed on administrative review by CBP’s Office of Regulations and Rulings,¹⁹ and was affirmed on remand by the U.S. Court of International Trade (CIT).²⁰ The Allegation states “{t}he remand redetermination, affirming the July 22, 2022 final affirmative evasion determination, was recently sustained by the U.S. Court of International Trade (CIT)... sustain{ing} CBP’s finding that Newtrend Indonesia was transshipping Chinese-origin glycine through Indonesia to the United States”....²¹

In addition, [description of business interaction].²² [description of business interaction]²³ According to the Allegation, “{t}he [description of business records]”.²⁴ The Alleger contends this [description of business practices].²⁵

¹² Newtrend Indonesia is a supplier of glycine based in Indonesia. *See also* Allegation at 1-3 and Exhibits 1, 2, and 10.

¹³ *See* Allegation at 1-3 and Exhibits 1, 2, 7, and 10.

¹⁴ *See* Allegation at 2 and Exhibits 1 and 2.

¹⁵ *Id.*

¹⁶ *See* Allegation at 2-3 and Exhibit 8.

¹⁷ *See* Allegation at 2 and Exhibit 3.

¹⁸ *See* Allegation at 2-3 and Exhibit 3.

¹⁹ *See* Allegation at 2 and Exhibit 4.

²⁰ *See* Allegation at 2 and Exhibit 5.

²¹ *See* Allegation at 2 and Exhibit 6.

²² *See* Allegation at 3 and Exhibits 9 and 10.

²³ *Id.* and Exhibit 11.

²⁴ *See* Exhibits 10 and 11.

²⁵ *See* Exhibit 10.

Initiation Assessment

TRLED will initiate an investigation if it determines that “{t}he information provided in the allegation ... reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion....”²⁶ Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”²⁷ Thus, an allegation must reasonably suggest not only that an importer alleged to be evading entered merchandise subject to an AD and/or CVD order into the United States, but also that such entry was made by a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.

In assessing the claims made and evidence provided in the Allegation, TRLED found that the information provided reasonably suggests that Wysdom may be evading the *Orders* by importing Chinese-origin glycine into the United States that has been transshipped through Indonesia and by failing to declare the merchandise as covered merchandise. Specifically, data in the Allegation indicated that Wysdom imported glycine from Newtrend Indonesia and declared it as being of Indonesian origin.²⁸ However, the certificate of analysis DPG provided in the Allegation indicates that the glycine was actually produced in China by [[entity](#)] a Newtrend Group affiliate of Newtrend Indonesia.²⁹ Furthermore, CBP’s previous determination in EAPA Cons. 7647 supports this conclusion because in that investigation, Newtrend Indonesia was a transshipment hub for Chinese-origin glycine transshipped to evade the *Orders*.³⁰

For the reasons set forth above, CBP initiated an investigation under the authority of 19 U.S.C. § 1517(b)(1) for the Importer’s imports of covered merchandise that are alleged to be entered for consumption into the customs territory of the United States through evasion.³¹

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, CBP will decide based on the record evidence if there is reasonable suspicion that such merchandise covered by the orders was entered into the United States through evasion.³² CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading entered merchandise covered by an AD and/or CVD order into the customs territory of the United States by a materially false statement or act, or material omission, that resulted in the reduction or

²⁶ See 19 C.F.R. § 165.15(b)(2); see also 19 U.S.C. § 1517(b)(1).

²⁷ See 19 C.F.R. § 165.1; see also 19 U.S.C. § 1517(a)(5)(A).

²⁸ See Allegation at Exhibits 1-2.

²⁹ See Allegation at Exhibit 11.

³⁰ See Allegation at Exhibits 2-4.

³¹ See also 19 C.F.R. § 165.15.

³² See 19 U.S.C. § 1517(e)(3).

avoidance of applicable AD and/or CVD cash deposits or other security.³³ If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24. As explained below, CBP is imposing interim measures because, based on the record evidence, there is reasonable suspicion that Wysdom entered covered merchandise into the customs territory of the United States through evasion by means of transshipment through Indonesia to avoid paying duties as per the *Orders*.

As discussed above, commercial trade data reasonably available to the Alleger shows that Wysdom's supplier of Chinese-origin glycine is likely Newtrend Indonesia, and that Wysdom has declared Indonesia as the country of origin for its glycine imports.³⁴ Data from CBP systems confirms that Wysdom declared Newtrend Indonesia as the supplier of glycine imports and declared them not subject to AD/CVD duties.³⁵ Further, the chemical analysis certificate provided in the Allegation shows [[entity](#)] is the likely true manufacturer of the glycine [[description of business interaction](#)] and that this glycine is likely Chinese origin.³⁶ Finally, the previous affirmative determination as to evasion issued by CBP on July 22, 2022, the final remand redetermination filed with the CIT by CBP on January 18, 2024, and the CIT's July 3, 2025, opinion affirming CBP's findings involving Newtrend Indonesia, further supports the allegation that Wysdom is importing Chinese-origin glycine by transshipment through Indonesia.³⁷

In assessing the record evidence, CBP finds that based on the information submitted by DPG and data from CBP systems, there is reasonable suspicion that Wysdom entered merchandise covered by the *Orders* into the customs territory of the United States through evasion.

Enactment of Interim Measures

Based on the record evidence described above, CBP determines that reasonable suspicion exists that Wysdom imported glycine into the United States from China that was transshipped through Indonesia, which should have been subject to the *Orders*. Therefore, CBP is imposing interim measures pursuant to this investigation. Specifically, in accordance with 19 U.S.C. § 1517(e), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after August 28, 2025, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under 19 U.S.C. § 1504(b), extend the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation on August 28, 2025; and
- (3) pursuant to the Commissioner's authority under 19 U.S.C. § 1623, take such additional measures as the Commissioner determines necessary to protect the revenue of

³³ *Id.*

³⁴ See Allegation at 1-3 and Exhibits 1, 2, 7, and 10.

³⁵ See CBP Receipt Report for EAPA 8206.

³⁶ See Allegation at 3 and Exhibit 10

³⁷ See Allegation at 2 and Exhibit 3

the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.³⁸

In addition, CBP will require live entry and reject any entry summaries that do not comply with live entry and require refiling of entries that are within the entry summary rejection period.³⁹ CBP may also evaluate Wysdom's continuous bonds to determine their sufficiency.⁴⁰ Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

For future submissions or factual information that you submit to CBP pursuant to this EAPA investigation, please provide a business confidential version and public version, with public summaries, to CBP *via* the EAPA Portal (aka the EAPA case management system (CMS)): <https://eapallegations.cbp.gov>.⁴¹ Documents uploaded to the CMS will constitute service on the parties to this investigation,⁴² and all administrative record documents will be available *via* the CMS. Please note that CBP requires that all documents submitted *via* the CMS are made text searchable, especially if those documents are submitted as PDFs.

Should you have any questions regarding this investigation, please feel free to contact us at eapallegations@cbp.dhs.gov, David.J.Dobson@cbp.dhs.gov, and Derek.R.King@cbp.dhs.gov. Please include "EAPA Case 8206" in the subject line of your email. Additional information on the investigation, including the applicable statute and regulations, may be found on CBP's website at: <https://www.cbp.gov/trade/eapa>.

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

³⁸ See also 19 C.F.R. § 165.24(b)(1)(i)-(iii).

³⁹ See 19 U.S.C. § 1517(e)(3).

⁴⁰ *Id.*

⁴¹ You will need a login name and password to use the CMS. The website will direct you how to obtain those.

⁴² See 19 C.F.R. § 165.4; see also 19 C.F.R. § 165.23(c) and 19 C.F.R. § 165.26.